

26PSCV00016 26PSCV00016

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Case Number: 26PSCV00016 Hearing Date: July 20, 2026 Dept: 6

Plaintiff

Cole M. Rauch's Request for Entry of Default Judgment

Defendants: 120-180 Monterey Station LLC, California Statewide

Communities Development Authority

TENTATIVE RULING

Plaintiff's request for entry of

default judgment is DENIED without prejudice.

BACKGROUND

This

is an uninhabitable premises case. On January 5, 2026, plaintiff Cole M. Rauch

(Plaintiff) filed this action against defendants 120-180 Monterey Station LLC (Property

Manager), California Statewide Communities Development Authority (Owner)

(collectively, Defendants), and Does 1 through 50, alleging causes of action

for breach of warranty of habitability, breach of covenant of quiet enjoyment,

negligent maintenance of premises, and constructive eviction.

On

February 23, 2026, the court clerk entered default against Owner.

On

March 10, 2026, the court clerk entered default against Manager.

On

May 1, 2026, Plaintiff requested entry of default judgment against Defendants.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party

has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party

seeking judgment on the default by the court must file a Request for Court

Judgment and: (1) a brief summary of the case; (2) declarations or other

admissible evidence in support of the judgment requested; (3) interest

computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration

of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all

parties against whom judgment is not sought or an application for separate

judgment under Code of Civil Procedure section 579, supported by a showing of

grounds for each judgment; (8) exhibits as necessary; and (9) a request for

attorneys' fees if allowed by statute or by the agreement of the parties. (Cal.

Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff seeks default judgment against

Defendants in the total amount of \$1,012,944.91, including \$1,000,000.00 in

damages, \$11,890.00 in attorney fees, and \$1,054.71 in costs. The Court finds some

problems with Plaintiff's default judgment request. First, Plaintiff has not

provided sufficient documentary evidence to support the amounts requested. (Rauch Decl., ¶¶ 33-40; Code Civ. Proc., § 585, subd.

(b) ["The

court shall hear the evidence offered by the plaintiff, and shall render

judgment in the

plaintiff's favor for that relief, not exceeding the amount stated in the

complaint... as appears by the evidence to be just"]; Cal. Rules of Court, rule

3.1800, subds. (a)(2), (a)(8).) In the context of a request for court judgment

by default, evidence to establish liability is not required since a

defendant's failure to answer the complaint admits the well-pleaded allegations

of the complaint, and no further proof of liability is required. (Carlsen

v. Koivumaki (2014) 227 Cal.App.4th 879, 883.) However, proof of

damages is still required. (Id. at p. 884.) Plaintiff's main documents are

a copy of the lease agreement and some Yelp! reviews from former residents regarding

problems at the property. (See Rauch Decl., Exs. 1-2; see generally, Kazachki Decl.) The documents Plaintiff provided do not in any way support damages of \$1,000,000.00.

The Court needs documentary evidence demonstrating monetary damages to support the amounts requested, such as rent payments, documents showing the items stolen from Plaintiff's apartment and their corresponding monetary values, treatments for physical and mental health problems, etc. Plaintiff stating various random estimates without any correlation to documented evidence or actual damages incurred is insufficient. (See Rauch Decl., ¶¶ 33-40.)

Second, rent abatement does not entitle Plaintiff to all rent paid. "A tenant is not relieved from the total obligation to pay rent if a landlord does not substantially comply with the applicable health and housing laws; the tenant may withhold payment of the rent until the defects are remedied or until there is a judicial determination as to the fair rent owing to the landlord for the premises in its substandard condition. [Citations.]" (Smith v. David (1981) 120 Cal.App.3d 101, 110.)

The tenant "remains liable for the reasonable rental value of the premises, as determined by the trial court, for such time as the premises were in violation of the housing codes." (Ibid.) Plaintiff needs to provide evidence of the reasonable rental value of the premises to recover rent abatement and the relevant time periods.

Third, Property

Manager cannot be liable for breach of the implied warranty of habitability

because Property Manager is not the landlord. (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 928-929.) Breach

of the implied warranty is a contractual matter. (See *ibid.*) Rent

abatement necessarily concerns the amount of rent the tenant owes to the

landlord under contract, not the landlord's agents, e.g., property managers. Accordingly,

Property Manager cannot be liable for rent abatement.

Fourth, Plaintiff did not complete items 4 through 6 on the

requests for entry of default judgment. (CIV-100, ¶¶ 4-6.) Additionally, the

default judgment request still needs to be served on the Defendants, even if

they have defaulted. (Bae v. T.D. Serv. Co. of Arizona (2016) 245

Cal.App.4th 89, 107, fn. 15.)

CONCLUSION

Based on the foregoing, Plaintiff's request

for entry of default judgment is DENIED without prejudice.